



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10171 (EXTENSION)
FIRST REVISION August 18, 1994

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 10171 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to April 30, 1998. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

for Marilyn E. Morris
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

MAY 14 1996

(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

MCM Management Control & Maintenance, S.A.
Geneva, Switzerland
(U.S. AGENT: Tank Container International, Ltd.
Schaumburg, IL)

March 5, 1996

Eurotainer SA, Inc.
Paris, France
(U.S. AGENT: Eurotainer US, Inc.
Somerset, NJ)

April 3, 1996

Ermetainer S.A.
Geneva, Switzerland
(U.S. AGENT: C.J.B. International, Inc.
Washington, DC)

April 24, 1996

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CONTINUATION OF DOT-E10171 (EXTENSION) FIRST REVISION August 18, 1994

EXEMPTION HOLDER

APPLICATION DATE

Arbel-Fauvet-Rail
Paris, France
(U.S. AGENT: C.J.B. International, Inc.
Washington, DC)

April 26, 1996



U.S. Department
of Transportation

**Research and
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Administration**

AUG 18 1994

400 Seventh Street S.W.
Washington D.C. 20590

DOT-E 10171
(FIRST REVISION)

1. Arbel-Fauvet-Rail, Douai Cedex, France (U.S. Agent: C.J.B. International, Inc., Washington, D.C.) is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packagings described in paragraph 7 below for certain Division 2.1 and 2.2 materials and a Class 3 for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the use of a non-DOT specification IMO Type 5 portable tank, and provides no relief from any regulation other than as specifically stated. Reference to 49 CFR sections in this exemption are to regulations in effect on September 30, 1991. Each of the following is hereby granted the status of party to this exemption.

MCM (Management Control & Maintenance), SA Geneva,
Switzerland (U.S. Agent: Tank Container International,
Ltd., Schamburg, IL) - PTE-1.
Eurotainer SA., France., (U.S. Agent: Eurotainer US,
Eurotainer U.S., Inc., Somerset, NJ) - PTE-2
Ermetainer SA, Geneva, France (U.S. Agent: C.J.B.
International, Inc., Washington, DC) - PTE-3.

2. BASIS. This exemption is based on Arbel-Fauvet-Rail's application dated July 12, 1994, submitted in accordance with 49 CFR 107.105. The granting of party status is based on the following applications submitted in accordance with 49 CFR 107.111 and the public proceeding thereon and 107.105:

MCM (Management Control & Maintenance), SA's application dated June 22, 1994.
Eurotainer SA, Incorporated's application dated July 7, 1994
Ermetainer, SA's application dated July 12, 1994.

3. HAZARDOUS MATERIALS (Descriptor and class).

- a. Butadiene, inhibited; Butane; Butylene; Dimethylamine anhydrous; Ethyl chloride; Ethylamine; Isobutylene; Methylamine anhydrous; Methyl chloride; 1, 1, 1, 2 - tetrafluoroethane; Trimethylamine anhydrous; Vinyl chloride stabilized; Isobutane; Chlorodifluoroethane (R142b); and Butane mixtures, classed as a Division 2.1.
- b. Dichloromonofluoromethane (R21), classed as a Division 2.2.

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4. PROPER SHIPPING NAME (49 CFR 172.101). The specific chemical name or generic commodity description, as appropriate.
5. REGULATION AFFECTED. 49 CFR 173.315, 178.245.
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight and cargo vessel.
7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification portable tank, mounted in an ISO frame, designed and constructed in accordance with: Arbel-Fauvet-Rail model FG 250/36 BP-1-BL (tank with three surge baffles) or FG 250/36 BP-1 (tank with no surge baffles); Arbel-Fauvet-Rail drawing numbers C-300 099 Rev. A, C-300 388 Rev. 0, C-300 389 Rev. 0, C-300 390 Rev. 0, C-300 391 Rev.0, and the following:

Tank with 3 surge baffles

Co 169 005 Rev. A

C-300 386 Rev. 0

Tank with no surge baffles

Co 169 006 Rev. A

C-300 387 Rev. 0

Portable tanks must be designed and constructed in accordance with drawings, technical specifications, and calculations on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA), and in compliance with the following:

- a. Code -- (i) Complies with DOT Specification 51 except that the fill and discharge openings are not located on the bottom of the tank, (ii) designed, constructed, and certified in accordance with the ASME Code, and (iii) IMO Type 5.
- b. Water capacity - (U.S. Gallons) 6618
- c. Insulation - Tanks are provided with a sun shield.
- d. Material - ASME SA-612 (carbon steel).
- e. Tank Size (inches) (outside dia.) X (length) X (thickness)
95.275 X 237.401 X 0.413
Head Thickness - 0.382 inches
Weld Joint Efficiency - 1.0
Corrosion Allowance - 0.0
Number of Baffles - Model FG 250/36 BP-1-BL - 3
Model FG 250/36 BP-1 - 0
- f. Design pressure (psig) - 174
Note: Design pressure means "maximum allowable working pressure (MAWP)" as used in the ASME Code.
- g. Test Pressure, minimum (psig) - 261

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h. Openings - One (1) - 18 inch diameter opening for the manhole and one (1) - 6.53 inch opening for the pressure relief device on the top; One (1) - 2.56 inch diameter opening for the liquid phase valve and one (1) - 2.56 inch diameter opening for the vapor phase valve on the bottom.

Note: Each bottom outlet valve shall be provided with a shear section that meets the requirements of 49 CFR 178.337-12.

i. Tank surface area (square feet) - 528.5

j. Pressure Relief Devices - One (1), 3 inch diameter spring loaded safety relief valve outboard of and in series with one (1), 3 inch diameter rupture disk, all set to open at 174 psig. Total relief device capacity is 882,866 SCFH. Each pressure relief device must be marked with a start-to-discharge pressure in psig and a rated relief device capacity in SCFH.

k. G-Loadings: Vertical down 2; Vertical up 1; Longitudinal 2; and Transverse 1.

l. Maximum Gross Weight (pounds) - 79,366

m. Maximum Commodity Weight (pounds):

- 63,382 for tank with 3 baffles (Model FG 250/36 BP-1-BL)
- 65,146 for tank with no baffles (Model FG 250/36 BP-1)

n. Tare Weight (pounds):

- 15,984 for tank with 3 baffles
- 14,220 for tank with no baffles

o. Design Specific Gravity - 1.148 for tank with 3 baffles
- 1.18 for tank with no baffles

p. Design Temperature Range (°F): -4 to +131

8. SPECIAL PROVISIONS.

a. Offerors for transportation of hazardous materials specified in this exemption may use the packaging described in this exemption for the transportation of such hazardous materials so long as no modifications or changes are made to the packages, all terms of this exemption are complied with, and a copy of the current exemption is maintained at each facility from which such reoffering occurs.

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- b. A copy of this exemption must be carried aboard each motor vehicle and cargo vessel used to transport packages covered by this exemption.
- c. Each portable tank must be plainly marked on both sides near the middle, in letters at least two inches high on a contrasting background, "DOT-E 10171."
- d. Rear end protection for the motor vehicle must meet the requirements of 49 CFR 178.340-8(b) and 393.86.
- e. Each portable tank must be secured to the motor vehicle in conformance with the requirements of 49 CFR 393.100 through 393.106.
- f. Hydrostatic test certificates for each tank must be maintained by the owner or manufacturer at its principal business office and be made available to any representative of the DOT upon request.
- g. No product may be shipped that has venting requirements exceeding 882,866 SCFH. The venting capacity required for each product must be determined by the flow formulas contained in the Compressed Gas Association's (CGA) Pamphlet S-1.2.
- h. A test report documenting a satisfactory ISO prototype test for these tank designs must be on file with the OHMEA prior to the first shipment.
- i. The tank must be filled by weight in accordance with the provisions of 49 CFR 173.315 for compressed gases and 49 CFR 173.123 (b) for ethyl chloride.
- j. Each tank must be (i) visually inspected prior to each trip to ensure that it has not been damaged on the previous trip; and (ii) retested and reinspected once every 5 years in accordance with 49 CFR 173.32(e) as prescribed for DOT Specification 51 portable tanks.
- k. Portable tanks may not be transported in container-on-flatcar (COFC) or trailer-on-flatcar (TOFC) service except under conditions approved by the Associate Administrator for Safety, Federal Railroad Administration.
- l. "DOT-E 10171" must be stamped on the metal manufacturer's data plate on the line which reads "U.S. DOT Specification No."

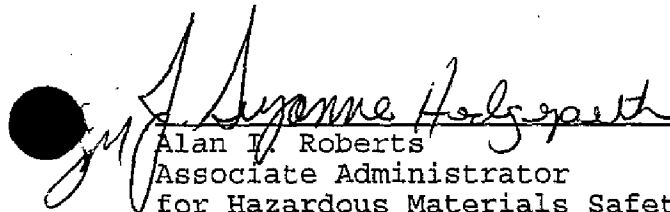
9. REPORTING REQUIREMENTS.

a. The holder of, or parties to this exemption, as identified in paragraph 1 above, shall notify the Associate Administrator for Hazardous Materials Safety, in writing, immediately after any of the tanks covered by this exemption are sold to another party. The written notification must include both the manufacturer's and owner's serial numbers.

b. Shippers who ship under the terms of this exemption shall report any incident involving loss of tank contents or damage to the tanks described herein to the OHMEA as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

10. EXPIRATION DATE. June 30, 1996.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

AUG 18 1994

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Program.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: USCG, FHWA, FRA.